

Tentative Rulings for Department 501

Begin at the next page

(35)

Tentative Ruling

Re: **Isaac Munoz v. CVT, LLC.**
Superior Court Case No. 24CECG00136

Hearing Date: September 3, 2026 (Dept. 501)

Motion: By Plaintiffs to Enforce Settlement

Tentative Ruling:

To grant. To approve the balance sought on the settlement of \$41,011.28. To sign the proposed judgment lodged on June 26, 2026.

Explanation:

Code of Civil Procedure Section 664.6 provides as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court . . . for settlement of the case . . . the court, upon motion, may enter judgment pursuant to the terms of the settlement." It also provides that the parties may request that the court "retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6.)

Here, plaintiffs Isaac Munoz, Michael Cepeda, and Nicholas Cepeda (together "Plaintiffs") seek a strained use of Code of Civil Procedure section 664.6. Plaintiffs submit a writing, signed by the parties, made outside the presence of the court. The writing reflects that this court would retain jurisdiction under section 664.6 to enforce the writing if defendant CVT, LLC ("Defendant") failed to make any timely payments required under the settlement agreement. (Webb Decl., ¶ 3, and Ex. 1 thereto.) The agreement contemplated single payments to each of Plaintiffs to settle the claims of this action. Plaintiffs submit that Defendant has made the contemplated payments, albeit it not timely. (*Id.*, ¶¶ 4, 5.) Thus, it appears that what Plaintiffs seek to enforce is merely interest on the principal from September 18, 2025, until payment was made on February 9, 2026, for a total of \$3,392.87. Costs were uncontested at \$5,103.41. Further, on December 31, 2025, the court entered an order awarding fees in the amount of \$32,515.00.

Based on the above, the motion is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/01/26
(Judge's initials) (Date)